

ARIZONA OWNER-BUILDER PERMIT KIT

No statewide code · One statewide permit

Project Address: _____

City / Town (if inside limits): _____

County: _____

Permit Issued By: _____

IRC / NEC on the Permit: _____

Deed Recorded On: _____

Owner-Builder: _____

"Permit Issued By" never reads NONE in Arizona — a county with no code still issues one.

"Deed Recorded On" must be earlier than every other date in this kit. AZ.1 explains why.

Every Arizona statute, rule and requirement in this kit
is cited on the page it appears on — verified September 2026.

BUILD YOUR HOUSE

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First Edition — 2026

How to Use This Kit

Five working documents, from "which rules are actually statewide?" to the last inspection tag.

Arizona is sold as the "no statewide code" state, and that much is true: no state agency adopts a residential building code, an energy code or an edition of the electrical code, and the edition that binds your house is whatever your city or county wrote into its adopting ordinance. What the circulating advice gets wrong is the next step. It turns "no statewide code" into "no permit," "no rules" and "varies locally" for things that are in fact fixed by statute for every lot in the state.

There is a statewide building permit. Every board of supervisors "shall require a building permit for any construction of a building ... exceeding a cost of \$1,000" (A.R.S. § 11-321(A)). A "no-permit county" does not exist. A **no-code** county does — one, Greenlee, in its own engineer's words — and two counties let a rural owner-builder opt out of plan review and inspection while keeping the permit. **There is a statewide owner-builder statement**, signed on every permit application, naming every licensed contractor you will use (§ 32-1169); a false one is a crime. **There is a statewide off-switch for the one-year sale rule**, and it is the same status that blocks subcontractor liens: a deed recorded before construction, and thirty days' residence after (§ 33-1002). And **the permit clocks run against city counters only** — the county statute carves every residential-lot permit out.

Then the two rulebooks that are genuinely statewide and reach every lot, including the no-code county: ADEQ's septic general permit, with its 100-foot well setback and its 50-foot property-line rule on well-served lots, and ADWR's well rules — under which an owner may drill their own exempt well on a no-fee license, after passing an exam.

WHAT IS IN THE KIT

The five documents

	Document	What it does for you
AZ.1	The Code Is Local, the Permit Is Not	The statewide permit and the one no-code county; the two county opt-outs and what survives them; the exemption quoted at the words that decide arguments; the deed-and-residence off-switch; who may lawfully help you; the statement you sign; workers' compensation honestly. Read this first.
AZ.2	Permit Application Checklist	The code editions actually in force in 15 counties and 20 cities, dated, with the confirm-at-the-counter rule for everything else; what applies on every lot regardless; the septic and well packages with the numbers that decide where the house can sit.
AZ.3	Inspection Sequence & Clocks	The city/county asymmetry — one request for corrections, a 15-working-day denial notice, an automatic refund and no mid-build plan changes on a city permit; "at the earliest reasonable time" on a county one — the septic and well clocks, the certificate of occupancy you may never get, and a log.

The five documents

	Document	What it does for you
AZ.4	Where to File Directory	Every county and the big cities as their own sites describe them, the Registrar, the ADEQ-delegated septic programs, ADWR, the two opt-out counties and the no-code county, and a page to record every office you confirmed.
AZ.5	Forms & Documents Index	Each document you will meet, named as the agency names it: the § 32-1169 statement, the ADEQ Notice of Intent and its two authorizations, the ADWR notice and the single well license, the recorded deed — and the 30-day clarification letter that answers every "varies locally" question.

HOW TO USE IT

- **Record the deed before the first shovel, then start with AZ.1.** The owner-occupant status that protects you is defined by a deed "recorded with the county recorder" *prior to commencement of the construction*. Nothing else in this kit can fix that date afterward.
- **Find your adopting ordinance, not your building department's web page.** The authoritative statement of which code edition binds your lot is the ordinance on file with the clerk. AZ.2 prints the map with the date it was read and tells you to ask for the ordinance number.
- **Then the septic site investigation and the well notice** — both state rules, both administered by offices the building code never touched, and the septic setbacks constrain where the house can physically sit.
- **Know which of your permits has a clock.** A city house permit carries statutory time frames and a refund; a county one carries none. AZ.3 tells you which you hold and what to do about it.
- **Keep AZ.3 on the job** and record every inspection as it happens — most of all if you built under an opt-out and no certificate of occupancy will ever issue. It is the only evidence you will have when you sell, refinance or insure.

How these facts were checked — and what this is not

Every Arizona claim here was read against its primary source in September 2026 — the Arizona Revised Statutes on the Legislature's own site, the Arizona Administrative Code section by section, the Registrar of Contractors' pages, ADEQ's own Notice of Intent form, and the adopting ordinances and code pages of 15 counties and 20 cities — and is cited where it appears. Where the answer genuinely depends on your city or county, the kit says so and gives you a line to write down what you confirmed. Not legal advice.